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Case No: 26NNCV01952

Hearing

Date: 07/31/2026 – 8:30 a.m.

Trial

Date: UNSET

Case

Name: MIRIAM RODRIGUEZ and SANDY SANVICENTE v. BMW OF NORTH AMERICA, LLC, a Delaware Limited Liability Company, and DOES 1 through 10, inclusive

[TENTATIVE

RULING – MJOP]

RELIEF REQUESTED

Defendant, BMW of North America, LLC, moves for judgment on the pleadings [MJOP] as to the first cause of action in Plaintiffs' complaint.

PARTIES/PAPERS

Moving Party: Defendant, BMW of North America, LLC
(Defendant or BMW)

Responding Party: Plaintiffs, Miriam Rodriguez and Sandy Sanvicente

Moving Papers: Notice/Motion; Proposed Order

Opposition Papers: Opposition

Reply Papers: No reply submitted

BACKGROUND

Plaintiffs, Miriam Rodriguez and Sandy Sanvicente, filed the complaint in this action on 3/17/2026 against Defendant, BMW of North America, LLC.

Plaintiffs' complaint alleges four causes of action: (1) Violation of the Song-Beverly Warranty Act, (2) Violation of the Federal Magnuson-Moss Warranty Act, (3) Breach of Express Warranty under the Commercial Code, and (4) Breach of Warranty under the Common Law.

Defendant now moves for judgment on the pleadings as to the first cause of action.

PROCEDURAL

Meet and Confer

Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings. (Code Civ. Proc. (CCP), § 439(a).)

"A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings." (CCP, § 439(a)(4).)

Here,

Defendant's counsel (Miller) alleges that he attempted to meet and confer by sending Plaintiffs' counsel an email discussing the grounds for the MJOP and

asking Plaintiffs' counsel if he wanted to schedule a telephone call to discuss; however, Plaintiffs' counsel never responded to the email. (See Miller Decl., ¶ 2.)

LEGAL STANDARD – MOTION FOR JUDGMENT ON THE PLEADINGS

If moving party is a defendant, a motion for judgment on the pleadings may be made if either of the following conditions exist: (1) The court has no jurisdiction of the subject of the cause of action alleged in the complaint, or (2) The complaint does not state facts sufficient to constitute a cause of action against the defendant. (CCP, § 438(c)(1)(B).)

"The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit." (CCP, § 438(d).)

"A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself. [Citation.]" (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877.) "A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings." (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 (Citations Omitted).) The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322 (citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216).)

TENTATIVE RULING

The Court tentatively plans to DENY

Defendant's MJOP for the reasons explained below. In short, Defendant's motion is not supported by on-point legal authority, and it relies on strained interpretations of cases that were at different procedural postures than the instant case.

Used Vehicle - Rodriguez

Defendant's MJOP is targeted at Plaintiffs' first cause of action for Violation of the Song-Beverly Consumer Warranty Act.

Defendant argues that Plaintiffs' first cause of action fails because the complaint admits that the Subject Vehicle is used; therefore, Defendant concludes that Plaintiffs' vehicle is not a "new motor vehicle" under Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189 (Rodriguez).

Defendant's argument is unavailing for several reasons.

The Song-Beverly Consumer Warranty Act provides buyers of new motor vehicles with specific remedies when a vehicle turns out to be defective. (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 195 citing Civ. Code § 1791 et seq.)

Section 1793.22, subdivision (e)(2) defines "new motor vehicle." (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 195.)

Under Civil Code § 1793.22(e)(2):

"New motor vehicle" means a new motor vehicle that is bought or used primarily for personal, family, or household purposes. "New motor vehicle" also means a new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person, including a partnership, limited liability company, corporation, association, or any other legal entity, to which not more than five motor vehicles are registered in this state. "New motor vehicle" includes the chassis, chassis cab, and that portion of a motor home devoted to its propulsion, but does not include any portion designed, used, or maintained primarily for human

habitation, a dealer-owned vehicle and a “demonstrator” or other motor vehicle sold with a manufacturer’s new car warranty but does not include a motorcycle or a motor vehicle which is not registered under the Vehicle Code because it is to be operated or used exclusively off the highways. A demonstrator is a vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type.

(Civ. Code, § 1793.22(e)(2).)

Here, Plaintiffs allege that their vehicle is a “new motor vehicle” under the Song-Beverly Act. (Compl., ¶ 10.)

Defendant argues that because Plaintiffs’ complaint also alleges that the subject vehicle was sold as a “certified pre-owned vehicle” (Compl., ¶ 6.), this means that Plaintiffs’ complaint concedes that the vehicle is a used vehicle, and thus falls outside the Song-Beverly Act because it applies only to “new motor vehicles.”

Problematic with Defendant’s argument is that a used vehicle can qualify as a “new motor vehicle” under the Song-Beverly Act.

“This text makes clear that certain used cars — “a dealer-owned vehicle and a ‘demonstrator’ or other motor vehicle sold with a manufacturer’s new car warranty” — qualify as “new motor vehicles” for purposes of the statute. (§ 1793.22, subd. (e)(2).)” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 198.)

Here, Plaintiffs alleged that the subject vehicle is a “new motor vehicle” under the Song-Beverly Act. (Compl. ¶ 10.)

Just because Plaintiffs also allege that their vehicle was sold to them as a “certified pre-owned vehicle” (Compl., ¶ 6.) does not necessarily mean that Plaintiffs’ vehicle is not a “new motor vehicle” under the Song-Beverly Act because certain used cars [e.g., dealer owned and demonstrators] qualify as “new motor vehicles” under the Song-Beverly

Act. (See *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198.)

As Plaintiffs' opposition points out, questions of fact exist as to whether their "certified pre-owned vehicle" was a "dealer-owned" or "demonstrator vehicle" prior to its sale, which would qualify as a "new motor vehicle" under the Song-Beverly Act.

Defendant attempts to rely on *Rodriguez* to argue that Plaintiffs' certified pre-owned vehicle was not a "new motor vehicle"; however, Defendant's reliance on *Rodriguez* is misplaced.

In *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Supreme Court of California concluded that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a "motor vehicle sold with a manufacturer's new car warranty" under section 1793.22, subdivision (e)(2) 's definition of "new motor vehicle" unless the new car warranty was issued with the sale." (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 196.)

Defendant's reliance on *Rodriguez* is misplaced for two reasons.

First, in *Rodriguez*, the Supreme Court of California examined what was considered a "motor vehicle sold with a manufacturer's new car warranty" under section 1793.22(e)(2)'s definition of "new motor vehicle." (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 196.)

Here, the issue is whether a certified pre-owned vehicle is a "dealer-owned" or "demonstrator vehicle."

Not only did Plaintiffs' opposition explain that questions of fact exist as to whether the subject vehicle was a dealer-owned or demonstrator vehicle prior to its sale, but the Court notes that the case law and language of the Song-Beverly Act are less than clear as to what is a "dealer-owned" or "demonstrator" vehicle.

Further, Defendant does not cite to any legal authority, nor does Defendant argue, that Plaintiffs

must allege that the vehicle was “dealer-owned” or a “demonstrator.”

Therefore, for pleading purposes, the Court finds Plaintiffs’ allegation that the subject vehicle is a “new motor vehicle” (Compl., ¶ 10.) under the Song-Beverly Act to be sufficient.

Second, Defendant’s reliance on Rodriguez is misplaced because the trial court in Rodriguez made its determination on whether or not the vehicle was a “new motor vehicle” under the Act based on a motion for summary judgment.

Here, Plaintiffs’ case is at the pleading stage.

Silvio

Defendant argues that Plaintiffs’ claim fails because it does not meet the requirements for liability under the Song-Beverly Act as set forth in Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205 (Silvio).

Defendant’s reliance on Silvio is unhelpful to Defendant.

In Silvio, the Second District Court of Appeal affirmed the trial court’s granting of defendants’ (manufacturer/dealer) motion for nonsuit because plaintiffs had given only one chance for defendants to repair the vehicle. (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1207.)

The Second District Court of Appeal thus held that the Song-Beverly Act does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle. (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208.)

Here, the instant case is at the pleading stage; a trial has not occurred to demonstrate that the manufacturer had only one opportunity to repair.

Additionally,

Plaintiffs' complaint alleges that the subject vehicle was delivered to Defendant for repair of nonconformities on "numerous" occasions. (Compl., ¶ 15.)

Additional
Arguments

Defendant argues

that the complaint "does not allege when the original manufacturer's new car warranty commenced, the details of it or the CPO warranty, nor does it allege the odometer readings of the Subject Vehicle at the time of any of the alleged repairs." (Def. Mot., p. 8.)

Problematic with

Defendant's argument is that it does not cite to any legal authority explaining that the Plaintiff must allege those things to successfully plead a cause of action under the Song-Beverly Act.

Defendant also

argues that Plaintiffs don't allege details about the certified pre-owned warranty.

Problematic with

Defendant's argument is that it does not cite to any legal authority explaining that the Plaintiff must allege those things

Defendant also argues that Plaintiffs failed

to identify specific nonconformities; however, that argument is unavailing because Plaintiffs identify several nonconformities in ¶ 8 of the complaint.

As explained in Oregel

A plaintiff pursuing an action under the Act has the burden

to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the

nonconformity after a reasonable number of repair attempts (the failure to repair element). (Civ. Code, § 1793.2; Ibrahim v. Ford Motor Co. (1989) 214 Cal.App.3d 878, 886-887.)

(Oregel v. American Isuzu Motors, Inc. (2001) 90 Cal.App.4th 1094, 1101.)

Here, Plaintiffs' complaint alleges the first element in Oregel in paragraphs 7-8 and 13-17, the second element in paragraphs 15-17, and the third element in paragraphs 15-19.

Conclusion

The Court plans to DENY Defendant's MJOP targeted at the first cause of action in Plaintiffs' complaint.